IN THE SUPREME COURT OF THE STATE OF KANSAS

No. 25-129788-S

GOVERNOR LAURA KELLY,
in her official capacity,
Petitioner,

v.

ATTORNEY GENERAL KRIS KOBACH,
in his official capacity,
Respondent.

AMICUS BRIEF OF LEGISLATIVE COORDINATING COUNCIL

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INTRODUCTION

This case is no mere executive-branch turf war. True, all that need be resolved is whether federal litigation on behalf of the State is ultimately controlled by the Attorney General or Governor—or by some awkward mix of both. But the statutes resolve this issue in favor of the Attorney General. *See* Part II, below. Thus, for the Governor to prevail, this Court cannot merely apply the Legislature's statutory division of power. Instead, the Court must redistribute to the Governor the Legislature's lawmaking power itself: the power to assign, apportion, and organize executive power among executive departments.

How? For the Governor, the whole argument can be teased from a few words in Art. I, § 3, which confirm the Governor's "supreme executive power" and responsibility "for the enforcement of the laws." But that unlikely theory is unsupported by this Court's opinions. And it would reverse decades of precedent. *See* Part I, below.

More seriously, it would usurp for this and future governors far more than control of federal litigation. First, it would pull into the Governor's powerful embrace all law enforcement and litigation functions, necessarily including district attorneys and local prosecutions. It would apply, too, to the Legislature's longstanding apportionment of executive powers among other constitutional officers. The Governor would reign supreme.

The Governor's claimed desire for a "say" in federal litigation is easily exposed as a bid to usurp the lawmaking power of the people's branch. "[T]his wolf comes as a

wolf." *Morrison v. Olson*, 487 U.S. 654, 699 (1988) (Scalia, J., dissenting). The people's branch respectfully requests that this Court protect its core lawmaking power to assign executive functions among executive offices consistent with the Kansas Constitution.

ARGUMENT

I. The Kansas Constitution Leaves to the Legislature, not the Governor, the Task of Apportioning the Legal and Prosecutorial Facets of State Executive Power.

A. The Attorney General's Powers are as Broad as the Common Law Unless Restricted or Modified by Statute.

In Kansas, "the Attorney General's powers are as broad as the common law unless restricted or modified by statute." *State v. Finch*, 128 Kan. 665, 280 P. 910, 913 (1929). The assignment of this role to "statute," that is, the Legislature, flows from three premises.

1. First, absent an express constitutional restriction, the Legislature is generally free to assign duties to the executive branch and to assign functions and powers among its offices. "Since the people have all governmental power, and exercise it through the legislative branch of the government, the Legislature is free to act except as it is restricted by the state Constitution…" *Leek v. Theis*, 217 Kan. 784, 802, 539 P.2d 304, 319 (1975) (contrasting the Kansas Legislature's power with that of Congress). *See also State ex rel. Tomasic v. Unified Government of Wyandotte County/Kansas City, Kansas*, 264 Kan. 293, 300, 955 P.2d 1136, 1145 (1998) ("It is fundamental that our state constitution limits rather than confers powers. Where the constitutionality of a statute is involved, the question presented is, therefore, not whether the act is authorized by the constitution, but

whether it is prohibited thereby."). "Unless the constitution specifically prohibits legislation, it is allowed." *Id.* at 323, 1159.

The Legislature's lawmaking power embraces the "constitutional authority to organize or reorganize the executive branch and assign functions to it on terms of its own choosing." *VanSickle v. Shanahan*, 212 Kan. 426, 448, 511 P.2d 223, 241 (1973). So too the power "to abolish, transfer, or revise the whole or any part of existing executive agencies or functions." *Id.* (explaining that this power, given to the governor to exercise by order under the 1972 revisions to article I, section 6 of the Kansas constitution is legislative and could still be exercised by the legislature through laws). Thus, the law enforcement and litigation powers of the executive, like other executive powers, can be "transferred," "reorganized," or "revised" by the Legislature.

2. Second, in organizing and assigning these law enforcement powers among executive branch officers, the Legislature paints on a canvass in which the Attorney General already holds sweeping common law powers as "chief legal representative of the sovereign in the courts," where "it was his duty to appear for and prosecute in behalf of the crown any matters-criminal as well as civil." *Finch*, 128 Kan. 665, 280 P. at 913 (internal citation omitted). When Kansas adopted the constitutional office of Attorney General, that office was born imbued with sweeping common law powers. *Id.* at 665, 913 (citing Kansas' original common law adoption statute). Thus, "the attorney-general may exercise common-law powers unless the constitution or statute law, either expressly or by

reasonable intendment, forbids the exercise thereof…" *Id.* at 665, 912 (internal citation omitted).

3. The constitution is mostly silent as to the Attorney General's powers and duties. Absent a constitutional definition of powers, the Legislature has the power to define the Attorney General's duties. *See State ex rel. Morrison v. Sebelius*, 285 Kan. 875, 884–85, 179 P.3d 366 (2008) (citing *State ex rel Stephan v. Finney*, 251 Kan. 559, 578, 836 P.2d 1169 (1992) ("'[T]he executive power is more limited than legislative powers, extending merely to the details of carrying into effect laws enacted by the legislature …, the legislature having the power, except where limited by the constitution itself, to stipulate what actions executive officers shall or shall not perform.'")). Thus, the sum of the Attorney General's powers equals the common law plus legislation.

B. The Constitution Does Not Independently Grant the Governor Authority to Control the Attorney General's Exercise of Legal and Prosecutorial Powers.

Contrary to the Governor's suggestion, the constitution does not surrender to her the people's power, acting through their Legislature, to organize and assign prosecutorial powers among the various executive officers and departments. *See Leek*, 217 Kan. at 803, 539 P.2d at 320 (Legislature has power to vest the appointment of employees of the executive branch in the manner the legislature chooses, even if the appointment power is an executive power, so long as not "expressly or impliedly prohibited by the constitution"). Here, not even the Governor argues that the constitution expressly vests in her office the power to assign and transfer law enforcement functions among executive

branch officers. Instead, the Governor would imply a power arising from Art. I, § 3, which since 1972 has defined the Governor's executive power in a single sentence: "The supreme executive power of this state shall be vested in a governor, who shall be responsible for the enforcement of the laws of this state." Previously, the second clause read, "who shall see that the laws are faithfully executed." *State v. Dawson*, 86 Kan. 180, 119 P. 360, 363 (1911).

Nothing suggests that the public meaning of these changes in 1972 transferred authority from the Legislature to the Governor to decide which law enforcement and litigation functions would be exercised by which executive offices. The first clause, vesting the "supreme executive power" in a governor, deals only with the executive power and therefore does not reach the legislative power of assigning functions and powers among executive departments. *See* Section I(A), above. The second clause merely changed the description of the aforementioned executive power from "see[ing] that the laws are faithfully executed" to "be[ing] responsible for the enforcement of the laws." Neither the plain text nor its implication transfers from Legislature to Governor the legislative power of assigning and apportioning litigation duties (or other executive duties) among officers.

Just after its passage, this Court recognized the 1972 change in Art. I, § 3's wording effected no substantive constitutional change. *See VanSickle*, 212 Kan. at 430, 511 P.2d at 228 (characterizing the amendment as having "incorporated and transferred with minor changes existing provisions of the Constitution which vested in the governor,

as executive power, the responsibility to see that the laws are faithfully executed (Section 3)"). This Court viewed the "power to enforce the laws" as simply a general description for "the executive power," not as some special reassignment to the Governor the right to control the State's entire law enforcement and litigation function. *Id.* at 440, 235 ("Generally speaking… the executive power is the power to enforce the laws…" and "the executive executes") (internal citations omitted). Thus, nothing in the constitution transfers from Legislature to Governor the Legislature's lawmaking power to apportion and assign law enforcement and litigation tasks.

C. The Legislature's Enunciation and Expansion of the Attorney General's Powers Over Time Has Gone Unquestioned.

By the time of the 1972 amendment to Art. I, § 3, this Court had held that the power of assigning executive law enforcement and litigation functions rests with the Legislature, not the Governor. Thus, in disputes regarding the powers of the Attorney General, the dispositive factor is the Legislature's statutory division of responsibilities. *See State ex rel. Foster v. Kansas City, Kansas*, 186 Kan. 190, 350 P.2d 37 (1960). In *Foster*, the Attorney General entered an appearance for the State in an original quo warranto proceeding brought in this Court by a district attorney to challenge the validity of annexation ordinances. *Id.* The Attorney General, believing the claims non-meritorious, dismissed them despite the Governor's written instruction "not to dismiss the case but to proceed to final judgment on the merits." *Id.* at 196, 41. This Court held that no precedent supported the Governor's right to force the Attorney General to proceed

with the case. Instead, it relied upon the text (since amended) of the statute at issue in the case at bar, K.S.A. 75-702, which at that time required the Attorney General to appear in the supreme court where the State is interested:

> In view of the plain, clear and unambiguous language of the first portion of 75–702, it is mandatory upon the attorney general to appear in this court as stated therein and any additional direction from the governor could have no more effect than the legislative mandate.

Id. at 194, 40.

The Court then elucidated a new constitutional check on efforts by either the executive or legislative branches to force the Attorney General to advocate a position he found non-meritorious. *Id.* at 197, 42. Because the Attorney General acts as an officer of the court, this Court explained, a legislative direction controlling his advocacy would encroach upon the judicial power:

> If…the attorney general considered the action unmeritorious, he not only had the authority, but he also had a duty to move for dismissal. We cannot think that the framers of our state constitution or the members of the legislature ever intended that the governor should have control over the judicial branch, or its officers…

Id. Since *Foster*, the Legislature has even more decisively vested control over State litigation in the hands of the Attorney General. In 2013, the Legislature amended K.S.A. 75-702 to broaden the courts in which the Attorney General must appear, adding the state court of appeals and federal courts. 2013 Kan. Laws Ch. 89 (H.B. 2043). It also provided that "when so appearing" in those courts, the Attorney General would "control the state's prosecution or defense," codifying and extending the rule from *Foster*.

The Governor claims that instead of *Foster*, this dispute is controlled by a case from a half century earlier that allegedly gave the Governor a "win" in the only example of a dispute between the law enforcement powers of the Attorney General and Governor. *See State ex rel. Stubbs v. Dawson*, 86 Kan. 180, 119 P. 360 (1911). The Governor further claims that *Dawson* shows that Art. I, § 3 provides a constitutional basis for establishing the Governor's supremacy over the Attorney General in all matters relating to law enforcement. But when this same argument was later advanced in *Foster*, this Court rejected it: "We cannot agree with the contentions that [*Dawson* and another case] are determinative of the question now before us." *Foster*, 186 Kan. at 196, 350 P.2d at 42. *Dawson*, this Court explained, rested on a statutory power granted to the Governor in special liquor control proceedings. In over 110 years, this Court has never once relied on *Dawson* for the principle that the Governor has a constitutionally derived power, superior to the Legislature's statutes dividing power in a different way, to prevail over the Attorney General in making decisions in law enforcement or litigation where the State is a party.

Foster, which came after *Dawson*, has never been called into question. In sum, the Legislature has validly exercised the quintessential legislative power of assigning executive law enforcement and litigation responsibilities for most of Kansas' statehood. This Court should give the Legislature's decisions full effect by recognizing that its statutes control this dispute. From there, the statutes answer the question presented.

II. The Legislature Intentionally Empowered the Attorney General to Represent Kansas in Federal Litigation, and this Court Should Reject the Governor's Attack on the Legislature's Choice and on its Power to so Choose.

A. The Controlling Statutes are Harmonious and Empower the Attorney General to Represent the State.

This Court has long recognized the Legislature's authority to structure the Executive Branch and define the authority and powers of each executive office. *See* Section I, above. That is precisely what it did here: the Legislature intended to, and did in fact, assign authority to control litigation in the name of the State to the Attorney General. We know this because that is what K.S.A. 75-702 says:

> The attorney general shall appear for the state, and prosecute and defend any and all actions and proceedings, civil or criminal…in all federal courts, in which the state shall be interested or a party, and shall, when so appearing, control the state's prosecution or defense.

The Governor demands that the Attorney General take three specific actions in federal court: (1) file for emergency injunctive relief against the USDA, citing ongoing litigation in federal court in California, (2) pursue legal action against DHSS in the Court of Federal Claims, and (3) assist other executive branch agencies in bringing claims related to terminated grants in the Court of Federal Claims. *See* Petition, Ex. 5. K.S.A. 75-702 gives the authority to make that decision to the Attorney General. And even if under limited circumstances the Governor can direct the Attorney General to become involved under K.S.A. 75-108, K.S.A. 75-702 still applies, authorizing the Attorney General to "control the state's prosecution or defense" once he appears for the State.

Nothing gives the Governor the authority to require the Attorney General to become involved, and to control the litigation once he does.

The Legislature wouldn't have it any other way. It especially would not contemplate a confusing system in which two executive branch officers would vie for control any time Kansas found itself in litigation. *See Finch*, 128 Kan. 665, 280 P. 910, 914–15 ("It is necessary in the prosecution or the defense of any case, civil or criminal, that some one be in charge."). The Court need only look to our neighbor to the south to understand why delegating this authority to a single constitutional officer—here, the Attorney General—makes sense: Oklahoma's ambiguous statutory language led its supreme court to conclude that the "Legislature intended to empower both the Governor and the Attorney General to represent the State's interests in litigation…" *Cherokee Nation v. United States Dep't of the Interior*, 2025 OK 4, ¶¶ 33-34, 564 P.3d 58, 70; *see also id.* ("[]To be clear, the broad authority of the Attorney General to represent the State is not nullified by the statutes which permit the Governor to select his own counsel. Rather, the Governor's specific authority runs concurrently with the general authority of the Attorney General."). At the same time, the Oklahoma Supreme Court and a federal court expressed their skepticism that the Governor could prevent the Attorney General from appearing in a case. *Id.* at 2025 OK 4, ¶ 55, 564 P.3d 58, 74.

To avoid this same unwieldy result, the Legislature primarily empowered the Attorney General to litigate on the State's behalf. That authority reaches its apex for litigation in the Kansas supreme court, the Kansas court of appeals, and federal courts:

> (a) The attorney general shall appear for the state, and prosecute and defend any and all actions and proceedings, civil or criminal, in the Kansas supreme court, the Kansas court of appeals and in all federal courts, in which the state shall be interested or a party, and shall, when so appearing, control the state's prosecution or defense.
>
> (b) The attorney general shall also, when required by the governor or either branch of the legislature, appear for the state and prosecute or defend, in any other court or before any officer, in any cause or matter, civil or criminal, in which this state may be a party or interested or when the constitutionality of any law of this state is at issue and when so directed shall seek final resolution of such issue in the supreme court of the state of Kansas.
>
> …

K.S.A. 75-702. First passed in 1879, Laws 1879, ch. 166, § 71, K.S.A. 75-702 has been amended several times. The relevant parts of subsection (a) assigning the Attorney General the right and responsibility to represent the State in federal court were amended most recently in 2013. L. 2013, ch. 89, § 2.

The other statute at issue here, K.S.A. 75-108, was enacted in 1879 and has not been amended since. It provides a limited role to the Governor in three specific instances.

1. It imposes on the Governor a duty to notify the Attorney general of the "commencement" of any proceeding affecting the State's interests or property. *Id.* ("Whenever the governor shall receive notice of the commencement of any action or proceedings, by which the rights, interests or property of the state shall be liable to be affected, the governor shall inform the attorney general thereof, and require the attorney general to act in conjunction with the counsel of the proper party to protect the interests of the state…"). This first clause imposes a duty only, and does not confer any rights to the Governor with respect to the pending proceeding. *See State ex rel. Stephan v.*

Reynolds, 234 Kan. 574, 576, 673 P.2d 1188, 1190 (1984) ("K.S.A. 75–108 also imposes upon the attorney general the duty to protect the interests of the state in any action when informed of such action by the governor.").

2. The second clause of K.S.A. 75-108 states that "in any such case, or in any action prosecuted or defended in behalf of the state, he or she may, if the public interests require it, employ such counsel as he or she shall deem proper to assist in any such action or proceeding…" *Id.* The "he or she" in this clause refers to the Attorney General, not the Governor. It empowers the Attorney General to employ additional counsel to "assist" him in representing the State's interests. This is the only reading of this second clause that gives any effect to the third clause, discussed below. If the Governor had broad authority to employ counsel in all proceedings in which the State has an interest, the third clause would be surplusage.

Even if the Governor's interpretation was correct that "he or she" refers to the Governor rather than the Attorney General, it still would not give the Governor authority to hire counsel to assume control of federal court proceedings. Such a broad reading would render the term "assist" superfluous and would create a conflict with K.S.A. 75-702's direction that the Attorney General shall "control the state's prosecution or defense" in federal court. Nothing in this text confers any rights on the Governor to displace the Attorney General's role under K.S.A. 75-702 by assuming control of the proceeding.

3. Finally, "in case of the absence or sickness of the attorney general, or if he or she shall be in any way interested adversely to the state in any action or proceeding, the governor may employ counsel to act in his or her stead." This clause grants the Governor authority to "employ counsel to act in [the Attorney General's] stead" only if the Attorney General is (1) absent or sick, or (2) "interested adversely to the state" in the proceeding (i.e., has a conflict). This clause is notable, as it is the only clause of K.S.A. 75-108 that permits the Governor to hire counsel to displace the Attorney General's role. *See id.* ("the governor may employ counsel to act in his or her stead."). Had the Legislature intended a similar right under the first two clauses, it demonstrated that it knew how to say so. But it did not, and the Court must give meaning to the Legislature's decision to provide such a right to the Governor only under the limited circumstances of this third clause.

The Attorney General is not absent. Nor is he sick. Nor is he "interested adversely to the state" in any of the three federal court proceedings in which the Governor wishes to force him to be her puppet. Under these circumstances, there is no authority granting the Governor the right to control the Attorney General or the litigation identified above.

B. If There is Any Conflict Between the Two Statutory Provisions at Issue, Section 702 Controls.

If there is any conflict between K.S.A 75-702 and 75-108, 75-702 controls because it is more recent and more specific. *See Tomasic*, 264 Kan. at 311, 955 P.2d at 1152 ("When two statutes conflict…then the more specific, more recent statute

controls.") (citing *Jones v. Continental Can Co.*, 260 Kan. 547, 556, 920 P.2d 939 (1996) ("[O]lder statutes…are subordinate to new enactments…,as the newer statute is the later expression of the legislative intent and so will control if there is a possible conflict between the two."); *State v. Le*, 260 Kan. 845, Syl. ¶ 2, 926 P.2d 638 (1996) ("General and special statutes should be read together and harmonized whenever possible, but to the extent a conflict between them exists, the special statute will prevail unless it appears the legislature intended to make the general statute controlling.")).

K.S.A. 75-108 is best viewed as giving the Governor some of the authority assigned to the Attorney General in K.S.A 75-702, but only under narrow circumstances when the Attorney General is unable to act due to absence, illness, or a conflict of interest. It otherwise does not grant the Governor any rights to control federal litigation involving the State. *See* Section II(A). The default rule under K.S.A. 75-702 controls.

C. The Governor's "Supreme Executive Authority" Theory is Boundless and Would Usurp the Legislature's Prerogative to Empower the Attorney General to Represent the State.

The Governor argues that Art. I, § 3 displaces the established lawmaking authority of the Legislature—the people's representatives—to decide which executive officer will represent the State's interest in the courts. Though she doesn't expressly admit it, her interpretation of the Governor's "supreme executive authority" would strip the Legislature of this established authority. It contains no limiting principle. District attorneys' roles, for example, are a creation of the people's Legislature—purely statutory. Could the Governor hire her own District Attorneys to prosecute crime if the elected

District Attorney declines to do so? *See* K.S.A. 22a-101, 22a-102, 22a-103, 22a-104 (creating district attorneys by statute and outlining their duties). Could she insist on enforcing the Kansas Consumer Protection Act in the name of the State, even though the Legislature gave that responsibility to the Attorney General? *See* K.S.A. 50-628 (requiring Attorney General to enforce the KCPA). If statutes fall before Article I, Section 3, what role for the Attorney General is not subject to the executive override the Governor asks this Court to create by judicial fiat?

The Governor's position preserves no sphere in which the Attorney General—an independent elected constitutional officer—may act to prosecute or defend the interests of the State against the wishes of the Governor. *See Cherokee Nation*, 2025 OK 4, ¶ 22, 564 P.3d 58, 67 (citing federal district court decision reflecting these notions). But under the correct reading of the statutes outlined above, the opposite is not true: though the Attorney General controls litigation in the name of the State, the Governor may still participate in proceedings in her official capacity where her office has standing.

This Court should be skeptical of an interpretation of the Governor's "supreme executive power" that sweeps so broadly that it displaces nearly a century of recognition of the Attorney General's authority and would utterly undermine the Legislature's thoughtful decisions about where legal authority resides.

CONCLUSION

Undoubtedly, "statutes and legislative commands or desires cannot countermand the Kansas Constitution…" Pet. Br. 4, 7, 8. But the Kansas Constitution never gave the Governor the power she claims here. And neither did the Legislature. The one point on which amicus agrees with the Governor is that this entire regime could change "if the Legislature chose to allocate litigation authority to another executive branch official instead of the Attorney General." *Id.* at 19. But it has not.

The Court should deny the Governor's Petition.

Dated: December 17, 2025. Respectfully submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on December 17, 2025, the above and foregoing Amicus Brief of Legislative Coordinating Council was electronically filed with the Kansas Supreme Court using the Court's electronic filing system, which will send a notice of electronic filing to all counsel of record.

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